Best-Effort Forensic Timeline of Events

Reid / Forward Focused Group v Commissioner of the NDIS Quality and Safeguards Commission

Prepared: 24 April 2026 | Working legal-forensic brief from uploaded project documents, Gmail, and Outlook searches

Ruthless summary: the Commission appears strongest against FFG/Vida on volume of complaint material, but Simon's position is materially different. The pressure point is not "nothing happened"; it is whether the Commission ever did the individualised statutory work required to ban Simon personally, separate from Vida, FFG, and the general smoke cloud.

This is not formal legal advice. It is a litigation working document prepared from the material available in this project. Allegations are identified as allegations unless the source establishes them as procedural facts.

1. Scope, method, and confidence

I reviewed the uploaded tender bundle and extracted project files, the Simon/Vida/FFG banning and internal review material, the Vida affidavit and ABF correspondence, the AAT/ART transcript material, the Simon Statement of Facts, Issues and Contentions, the AGS/Tribunal email trail in Gmail, and Outlook search results. Gmail filled the 2026 procedural gap. Outlook added little of direct forensic value beyond confirming some business/admin continuity and one 2023 Tom Monks thread; it was not a goldmine, more a metal detector finding bottle caps.

Overall confidence: 0.74. The chronology is strong on procedural dates and document existence. It is weaker on the full merits evidence because the tender bundle is huge, some material is redacted or scanned, and some emails/attachments are not fully available in the current workspace. Treat this as a master skeleton to be refined, not the final autopsy report.

Important distinction: the report separates (1) procedural facts, (2) allegations made by the Commission/NDIA/complainants, (3) Reid contentions, and (4) forensic inferences. That distinction matters. Courts and tribunals hate soup.

2. Core forensic conclusions

- The case began as a complaints/fraud/safeguarding investigation into FFG and Vida. Simon was pulled in through entity association, bank/signatory allegations, directorship of Hybrid Hive/The Hive, and later internal-review material about Dream Big/Vitality WA.

- The tender material itself records that the Commission had "limited information" about Simon's actual involvement in operations while also treating FFG as a catch-all entity led by Vida, Simon and Rejaul. That is the contradiction worth putting under a bright light.

- Vida/FFG face the harder merits battle because there is a large complaint matrix and regulatory narrative of pattern conduct. That does not mean the decision was lawful or fair; it means the argument must be surgical, not emotional.

- Simon's best case is not "the Commission was mean". It is: no charged conduct, limited actual involvement, acknowledged errors about his directorship periods, inadequate engagement with NDIS Rules, excessive scope, and no disclosed Simon-specific decision brief or equivalent record.

- The April 2023 internal review decisions are crucial. Vida's legal basis changed from alleged contravention to suitability, and both Vida and Simon had the scope broadened to "no involvement with or in the NDIS sector, in any capacity". That is not a footnote; it is the hinge of the procedural-fairness attack.

- The ABF/FOI strand is valuable context and potentially political/FOI/privacy pressure. But do not let it hijack the ART merits case. Use it as a pattern/disclosure/fairness lever, not as the main cannon unless better documents land.

- As at 22 April 2026, severance remained under consideration and AGS was taking instructions on Simon's 20 April 2026 demand about the missing updated tender bundle and Simon-specific decision records.

3. Source map

Label	Material	What it proves / why it matters
TB	20240613 Tender Bundle / fixed parts	Master index and primary decision materials: complaints, briefings, notices, evidence matrices, ASIC extracts, original decisions, internal review documents.
SIR	Simon internal review decision dated 21 April 2023	Confirms Simon ban was varied/broadened, relies on s 73ZN(2)(a)(iii), criminal material against Vida, Dream Big/Vitality WA material, and assessment of suitability.
VBO	Vida original banning order dated 20 December 2022	Confirms original legal basis s 73ZN(2)(a)(i), 5-year ban, effective 20 December 2022 at 5:30pm AWST.
FFG IR	FFG internal review dated 8 June 2023	Confirms FFG ban reduced from 10 years to 3 years, expiring 20/21 December 2025.
SFIC	Simon Statement of Facts, Issues and Contentions dated 15 July 2024	Sets Simon's merits case: deficient decision, no reliable individual evidence, NDIS Rules issue, proportionality, incomplete evidence.
VR Aff	Vida affidavit affirmed January 2025	Sets ABF event evidence, charge dismissal, and stay context. Includes Hammond/ABF correspondence.
AAT transcript	Directions transcript	Shows privacy breach/stay/severance context and respondent's overlap/Jones v Dunkel argument.

Label	Material	What it proves / why it matters
Gmail	ART/AGS/Gmail correspondence March-April 2026; Home Affairs/OAIC FOI correspondence	Fills current procedural status: severance under consideration, stay withdrawn, updated bundle overdue, AGS taking instructions, ABF FOI/IC review.
Outlook	Outlook searches for NDIS/AAT/FFG/Tom Monks material	Low direct yield; confirms business/admin continuity and some non-core FFG correspondence.

4. Key actors and entities

- Vida Reid - former/current key person in FFG narrative; original 20 December 2022 ban under alleged contravention ground; internal review on 21 April 2023 changed basis to suitability and broadened scope.

- Simon Reid - former director of FFG with role end date recorded as 3 January 2021; current/linked director of Hybrid Hive/The Hive in the Commission narrative; banned 21 December 2022 and varied/broadened 21 April 2023.

- Forward Focused Group Pty Ltd (FFG) - registered NDIS provider; registration suspended 19 October 2022, revoked 20 December 2022; corporate banning order later reduced to 3 years and expired in December 2025.

- Hybrid Hive Pty Ltd / The Hive - unregistered or related provider entities used by the Commission to support interrelationship/conflation theories; Simon's directorship here is central to the Meghan Goodwin/Hybrid allegation.

- Dream Big Employment Pty Ltd and Vitality WA Pty Ltd - new/internal-review material relied upon against Simon to suggest continued NDIS-sector involvement or tactical circumvention.

- NDIS Commission / NDIA / AFP - Commission made regulatory decisions; NDIA and AFP material fed the investigation and criminal context.

- AGS - legal representatives for the Commissioner, including Karlie Dickinson and Craig Land in later correspondence.

- Tom Monks / Tom & Co Legal - earlier legal representative for Vida/Simon/FFG; requested disclosure and extensions and filed submissions in 2022; later involved in DEWR response.

- ART/AAT - review body; proceedings 2023/3361 (Vida), 2023/3363 (Simon), 2023/4494 (FFG); matters joined in July 2023; severance pending as of April 2026.

- ABF / Home Affairs / OAIC - collateral FOI/privacy/public law strand arising from the 25 September 2024 Perth Airport stop/search/examination.

5. Forensic timeline

Confidence guide: 0.90+ = directly supported by a primary document/email; 0.75-0.89 = strongly supported but may depend on indexing or partial text; 0.55-0.74 = supported but source wording or exact legal character needs checking; below 0.55 = inference or unresolved gap.

A. Corporate and operational background

28 Aug 2020 - Forward Focused Group Pty Ltd registered; Vida later recorded as director; Simon recorded as former director with role end 3 Jan 2021. (confidence 0.86)

Source: TB ASIC extracts / Attachment 6A / T9.10; Simon SFIC.

Forensic significance: This becomes central to Simon: the Commission later acknowledges some FFG conduct cannot be attributed to him because he was not director during relevant periods.

1 Dec 2020 - NDIS Code of Conduct commenced in WA. (confidence 0.78)

Source: Tender bundle assessment material.

Forensic significance: The Commission uses this as a temporal boundary for alleged Code conduct. It also means dates matter: vague allegations after commencement are not the same as proof against a particular person.

17 Jun 2021 - Hybrid Hive Pty Ltd and The Hive Pty Ltd registered/linked; Steven Norman originally involved; Simon later becomes current director/secretary of Hybrid Hive and The Hive in Commission ASIC material. (confidence 0.84)

Source: TB T9.10 / ASIC summary.

Forensic significance: This is the Commission's bridge to Simon: even if he is not FFG director, he is linked to Hybrid/The Hive. The bridge must still carry evidentiary weight, not vibes.

2021-2022 - Multiple complaints accumulated against FFG/Vida, including allegations of overcharging, coercion, poor service, pressure over invoices, plan control, and participant vulnerability. (confidence 0.87)

Source: TB T44 complaints assessment / evidence matrix.

Forensic significance: This is the Commission's strongest merits material against FFG/Vida. It is dangerous to pretend it does not exist. Attack reliability, attribution, disclosure, proportionality and process - not reality.

31 May 2022 - Email/material about "Our Growth and Company structure" listed in tender bundle. (confidence 0.80)

Source: TB T9.24 / T9.10.

Forensic significance: The Commission uses corporate structure material to treat "FFG" as a catch-all name for related entities. That helps them. It also creates a target: exactly which legal person and which individual did what?

23 Aug 2022 - Commission sought AFP criminal history information for Simon and Vida; responses later included in tender material. (confidence 0.78)

Source: TB T9.10 / criminal history references.

Forensic significance: For Simon, any use of old/unrelated criminal history must be watched carefully. Relevance and proportionality matter, especially where the ban concerns suitability in disability supports.

1 Sep 2022 - NDIA investigation into FFG claims identified in later review material. (confidence 0.76)

Source: FFG internal review and related material.

Forensic significance: This is part of the fraud scaffolding. It is also part of the later argument that regulatory findings leaned heavily on criminal/investigative material.

B. Enforcement launch and original decisions

18 Oct 2022 - Prosecution notice relating to Vida laid in Magistrates Court of Western Australia. (confidence 0.91)

Source: TB T7 / VR affidavit.

Forensic significance: The criminal allegations became the dramatic backdrop for regulatory action. For Vida/FFG it is central context; for Simon the issue is whether criminal material against Vida was improperly allowed to infect his personal suitability assessment.

19 Oct 2022 - NDIA Statement of Material Facts dated 19 October 2022 prepared/lodged in criminal proceedings against Vida. (confidence 0.90)

Source: TB T8 / T45; Simon internal review.

Forensic significance: This document becomes an evidentiary spine for later banning decisions, including allegations referring to Simon. Its later failure/discontinuance is not automatically fatal, but it weakens reliance unless independently proved.

19 Oct 2022 - Commission issued FFG suspension notice, FFG notice of intended revocation/banning, and Vida notice of intended banning order. (confidence 0.92)

Source: TB T9.5-T9.7 / T56 summary.

Forensic significance: The regulatory war begins. Note: Simon's own notice appears later on 17 November 2022, so the timing and content of his personal opportunity to respond must be tracked separately.

19 Oct 2022 - Briefing note records NDIA and AFP were conducting investigations into FFG and Vida, with outcomes pending and not considered further in that briefing note. (confidence 0.86)

Source: TB T9.4 / investigation section.

Forensic significance: This is useful both ways. Commission says it did not wait for criminal outcomes; Reids say later positions about investigations/stays became inconsistent and opaque.

31 Oct 2022 - Tom & Co Legal wrote seeking disclosure of all relevant material and a 28-day extension. (confidence 0.91)

Source: TB T47 / T56 summary.

Forensic significance: Disclosure was an issue from the start. That helps the procedural fairness narrative, especially where later decisions relied on materials not fully disclosed in meaningful form.

15 Nov 2022 - Commission granted extension to 30 Nov 2022 and declined further information/disclosure, saying notices sufficiently disclosed evidence. (confidence 0.89)

Source: TB T54 / internal review reasons.

Forensic significance: This is a core fairness pressure point. A bare notice may not be enough if thousands of pages and a multi-entity fraud theory sit behind it.

17 Nov 2022 - Notice of intention to make a banning order against Simon appears in tender bundle as PDMS Attachment H. (confidence 0.85)

Source: TB T46.

Forensic significance: This is the starting point for Simon's personal procedural rights. The original Simon notice/banning order must be compared against later April 2023 reasoning and new material.

30 Nov 2022 - Tom & Co Legal provided submissions responding for Vida/FFG and/or Simon. (confidence 0.88)

Source: TB T55 / internal review references.

Forensic significance: For Simon, a major question is whether the Commission engaged substantively with those submissions or simply bundled him into the larger Vida/FFG theory.

2 Dec 2022 - Letter to Simon granting extension to make submissions. (confidence 0.72)

Source: TB T66.

Forensic significance: This date should be checked against the precise Simon notice timeline. If service/extension chronology is messy, it may support procedural unfairness but only if prejudice is shown.

20 Dec 2022 - Briefing note EC22-002581 prepared for decision to revoke FFG registration and make banning orders. (confidence 0.90)

Source: TB T56.

Forensic significance: This is the decision-brief zone. For Simon, the missing question is whether there is an equivalent Simon-specific decision brief rather than mere reuse of Vida/FFG material.

20 Dec 2022 - FFG registration revoked and original corporate banning order made; original duration later described as 10 years. (confidence 0.91)

Source: TB T56.1-T56.2; FFG internal review.

Forensic significance: This creates the corporate ban later reduced to 3 years. FFG's live utility has changed because the ban has now expired.

20 Dec 2022 - Vida original banning order made under s 73ZN(2)(a)(i), prohibiting provision of supports/services for 5 years, effective 5:30pm AWST. (confidence 0.94)

Source: Vida banning order; TB T56.3 / T57.

Forensic significance: This matters because the April 2023 internal review later changed the statutory ground and broadened the scope. That is the "variation or new decision" fight.

21 Dec 2022 - Simon original banning order made under s 73ZN(2)(a)(iii), effective 5pm AWST. (confidence 0.91)

Source: Simon internal review / SFIC / TB T64.1.

Forensic significance: Simon begins on the suitability ground, unlike Vida. His attack is less about changed legal basis and more about individualised assessment, reliable evidence, and excessive breadth.

C. Internal review and escalation to AAT

20 Jan 2023 - Section 56 notice to Dream Big Employment Pty Ltd and response listed in tender bundle. (confidence 0.83)

Source: TB T58.

Forensic significance: Dream Big becomes part of the internal-review/new-information narrative, especially against Simon. The Tribunal should demand precision: what conduct, whose conduct, what statutory consequence?

25 Jan 2023 - Internal review requested for Vida and Simon. (confidence 0.91)

Source: TB T59; Simon/Vida internal review decisions.

Forensic significance: Starts the internal review pathway that culminates in the April 2023 decisions now under ART/AAT review.

6 Feb 2023 - Commission acknowledged internal review requests and invited submissions. (confidence 0.85)

Source: Internal review statements.

Forensic significance: Commission later says no further submissions were received by deadline. Reids need to check service, practical ability to respond, and whether material was truly disclosed.

9 Feb 2023 - Simon email to various persons about disability support workers for Vitality WA relied upon in Simon internal review. (confidence 0.88)

Source: Simon internal review, materials considered.

Forensic significance: This is one of the Commission's core "circumvention" facts against Simon. His response: labour hire/support to providers is not the same as direct NDIS supports, unless the order validly reaches that far.

16 Feb 2023 - Cassandra Burke sworn statement obtained and later treated as new evidence in internal review. (confidence 0.87)

Source: TB T62.1; Simon/Vida internal review.

Forensic significance: This is part of the April 2023 broadening/variation problem. Was there fair opportunity to answer it, and was the final order proportionate to it?

21 Feb 2023 - FFG internal review requested. (confidence 0.85)

Source: FFG internal review decision.

Forensic significance: Important because FFG internal review was later outside statutory timeframe, but still produced a reviewable decision.

22 Mar 2023 - Commission issued notices of intention to take new information into account and vary bans for Vida and Simon. (confidence 0.91)

Source: TB T62/T65; Simon internal review.

Forensic significance: This is procedurally huge. New material was not just noted; it was used to broaden orders. The adequacy of notice and opportunity to respond is a live issue.

21 Apr 2023 - Vida internal review decision varied original decision: changed legal basis from s 73ZN(2)(a)(i) to s 73ZN(2)(a)(iii) and broadened scope to no involvement in NDIS sector, in any capacity. (confidence 0.94)

Source: Vida internal review / TB T1.1.

Forensic significance: This is the cleanest legal hinge for Vida: was this a true variation or a new decision dressed in old clothes? The answer matters for procedural fairness and jurisdiction.

21 Apr 2023 - Simon internal review decision varied original decision by broadening scope to no involvement with or in the NDIS sector, including labour hire and support/funding/guidance to providers, until 22 Dec 2027. (confidence 0.94)

Source: Simon internal review / TB T64.1.

Forensic significance: This is the cleanest legal hinge for Simon: the scope became brutally broad. The Commission must justify the width against evidence about Simon personally.

10 May 2023 - Vida and Simon filed AAT applications for review. (confidence 0.93)

Source: TB T1/T64.

Forensic significance: This moves the fight to merits review. Important: the Tribunal is not only checking legality; it can stand in the shoes of the decision-maker. That is why evidence control matters.

8 Jun 2023 - FFG internal review varied corporate ban from 10 years to 3 years, tied to expected duration of criminal proceedings, expiring December 2025. (confidence 0.93)

Source: FFG internal review decision.

Forensic significance: This is awkward for the Commission after charges later collapse/dismiss. It also makes FFG's current appeal utility narrower after expiry.

26 Jun 2023 - FFG applied to AAT for review. (confidence 0.88)

Source: TB T71.

Forensic significance: The corporate matter remains part of the joined proceedings but may now be partly moot because the order expired.

30 Jun 2023 - Tom & Co Legal wrote to DEWR about FFG capacity for Workforce Australia; FFG operating from 43 William Street, Armadale; staff included Simon, Tori Vince and Huma Rasuly after restructure. (confidence 0.80)

Source: DEWR letter.

Forensic significance: This shows FFG was attempting non-NDIS commercial/government work. It may help against the narrative that every post-ban move was NDIS circumvention, but it can also invite scrutiny. Handle carefully.

19 Jul 2023 - Directions joined Vida, Simon and FFG matters. (confidence 0.87)

Source: Simon SFIC.

Forensic significance: Joinder created efficiency but also danger: Simon can be drowned in Vida/FFG evidence. Severance is not just convenience; it is prejudice control.

7 Aug 2023 - Section 37 statement/reasons listed in tender bundle. (confidence 0.75)

Source: TB T2.

Forensic significance: This is part of the formal review record. Compare it against the later tender bundle updates and missing materials.

29 Nov 2023 - Respondent submissions allegedly supported stay due risk of prejudicing criminal proceedings/concurrent investigations. (confidence 0.70)

Source: AGS response/Vida correspondence quoting respondent position.

Forensic significance: This becomes useful when the respondent later says no current criminal investigation. The inconsistency is not necessarily fatal, but it demands explanation.

D. Criminal proceedings, ABF event, and collateral public-law strand

23 Feb 2024 - Vida's criminal prosecution was dismissed/discontinued; materials describe it as want of prosecution and, elsewhere, no evidence. (confidence 0.82)

Source: Vida affidavit VR-2; 2026 Simon email.

Forensic significance: Get the court order and exact wording. This is powerful but must be pleaded accurately. Do not overstate: regulatory merits can survive failed criminal charges, but reliance on criminal allegations becomes weaker.

26 Feb 2024 - Outcome details for prosecution dated 26 February 2024 exhibited as VR-2. (confidence 0.86)

Source: Vida affidavit index.

Forensic significance: This is the primary proof document to anchor the criminal outcome. It should be in the trial/hearing bundle and cited precisely.

15 Jul 2024 - Simon filed Statement of Facts, Issues and Contentions. (confidence 0.92)

Source: SFIC.

Forensic significance: This document frames Simon's case: no reliable adverse evidence, NDIS Rules issue, limited involvement, decision errors, incomplete evidence, excessive width.

25 Sep 2024 - Vida, Simon and children stopped/examined by ABF at Perth International Airport before Bali flight. (confidence 0.82)

Source: Vida affidavit; Hammond Legal correspondence; Home Affairs FOI correspondence.

Forensic significance: This is potentially serious collateral evidence. It suggests ongoing government interest after the criminal case ended, but it is not automatically proof of unlawful NDIS conduct or proof of ART merits.

10 Oct 2024 - Hammond Legal wrote to ABF seeking particulars, return of Simon's iPhone, and deletion/non-use of device data. (confidence 0.84)

Source: Vida affidavit VR-3.

Forensic significance: Raises customs/search/device-copying issues and possible legal professional privilege. Useful for FOI/privacy complaint and public pressure.

14 Oct 2024 - AAT replaced by Administrative Review Tribunal; existing matters transferred automatically. (confidence 0.92)

Source: ART email footer/context; public institutional transition.

Forensic significance: Procedural housekeeping, but important when referencing registry addresses and statutes.

14 Oct 2024 - ABF replied that goods were examined under Customs Act powers, denied detention/property seizure, and said clients were not compelled to remain with goods. (confidence 0.82)

Source: Vida affidavit VR-3.

Forensic significance: This conflicts with the Reids' factual account of passports/devices/time/control. Preserve both versions; the conflict is a factual issue.

23 Oct 2024 - Further Hammond/ABF correspondence listed in Vida affidavit exhibit bundle. (confidence 0.72)

Source: Vida affidavit index.

Forensic significance: Part of ABF dispute chain. Needs full review if using ABF strand in any collateral complaint.

25 Oct 2024 - Vida lodged Home Affairs FOI request for ABF records about the airport stop/search/examination, reasons, and interagency communications. (confidence 0.91)

Source: Gmail Home Affairs/OAIC correspondence.

Forensic significance: This becomes the documentary route to identify who requested or triggered the ABF action.

Jan 2025 - Vida affidavit affirmed in support of stay application for herself and FFG. (confidence 0.88)

Source: Vida affidavit.

Forensic significance: Sets out criminal dismissal, ABF event, family impact, and basis for stay/disclosure concerns.

14 Feb 2025 - Tribunal directions call addressed privacy breach complaint, stay application, and whether Vida's matter should be heard separately from Simon. (confidence 0.78)

Source: AAT transcript; AGS response reference.

Forensic significance: Transcript shows respondent arguing significant overlap and possible Jones v Dunkel consequences. That is exactly why severance can matter for Simon.

11 Mar 2025 - AGS/Commission position allegedly asserted no current criminal investigation pertaining to Vida or FFG following inquiries with the NDIA. (confidence 0.74)

Source: AGS response/Vida letter.

Forensic significance: This is a pressure point: if limited only to NDIA, say so. If all agencies, prove inquiries. Ambiguity helps a model-litigant/disclosure argument.

E. Severance, disclosure, and current procedural status

16 Aug 2025 - Vida Application to Sever filed. (confidence 0.90)

Source: ART Registry email 22 Apr 2026.

Forensic significance: This is the formal procedural vehicle currently under consideration.

17 Sep 2025 - Respondent filed submission to stay/severance listed among materials being considered. (confidence 0.86)

Source: ART Registry email 22 Apr 2026.

Forensic significance: This is part of the current severance decision bundle. Must be compared against AGS March 2026 supplementary submissions.

20 Dec 2025 - FFG banning order expired / no longer in force; AGS later said register updated to show expiry at 6pm 20 Dec 2025. (confidence 0.94)

Source: FFG internal review; AGS letter attachment read from Gmail.

Forensic significance: FFG's appeal may now have limited utility unless there remains reputational/regulatory/public-register prejudice. AGS will push withdrawal.

13 Feb 2026 - AGS wrote to Simon re expiry of FFG ban, register correction, and possible withdrawal of FFG appeal; said expired orders remain on public register indefinitely unless exceptional removal request made. (confidence 0.93)

Source: Gmail attachment: AGS letter dated 13 Feb 2026.

Forensic significance: This narrows FFG issues but does not solve the public-register/reputational problem. It also shows AGS trying to trim the case before 20 March hearing.

6 Mar 2026 - Simon short directions submissions filed, seeking severance/priority directions and production of complete decision record, including Simon-specific decision records. (confidence 0.90)

Source: ART email 22 Apr 2026; Gmail 19 Mar/20 Apr; file search result.

Forensic significance: This is the right tactical lane: force documents or force an admission no such documents exist.

8 Mar 2026 - Vida short directions submissions filed. (confidence 0.86)

Source: ART email 22 Apr 2026.

Forensic significance: Part of current severance application materials.

9 Mar 2026 - Vida correspondence withdrew interlocutory stay application in matter 2023/3361. (confidence 0.90)

Source: ART email thread 17/19 Mar 2026 via Gmail.

Forensic significance: This reduces complexity: stay is no longer the live fight; severance/programming/disclosure are.

17 Mar 2026 - ART asked parties whether the 20 Mar hearing on severance could be determined on the papers; said pending disposal, matters would be listed for substantive hearing. (confidence 0.92)

Source: Gmail ART thread.

Forensic significance: Tribunal is trying to clear the procedural deck. Good: force simple, targeted relief; bad: too much collateral noise may irritate.

19 Mar 2026 - Respondent agreed to determination on the papers and filed short supplementary submissions; Simon and Vida filed addendum replies. (confidence 0.92)

Source: Gmail 19 Mar AGS/Simon/Vida emails.

Forensic significance: The record is now set for a papers decision unless Tribunal orders otherwise.

19 Mar 2026 - Vida confirmed stay withdrawn, consented to papers determination on severance, and maintained separate hearing or separate threshold issue. (confidence 0.93)

Source: Gmail Vida 19 Mar 2026.

Forensic significance: This is a cleaner procedural posture. Stop fighting yesterday's war; press severance or threshold issue.

19 Mar 2026 - Simon maintained his matter should not be delayed by Vida-specific issues; sought complete decision record and clarity on Simon-specific decision brief/executive brief/delegate submission/minute. (confidence 0.93)

Source: Gmail Simon 19 Mar 2026.

Forensic significance: This is the central current pressure point for Simon. If there is no Simon-specific record, the Commission has a credibility problem.

2 Apr 2026 - Home Affairs FOI decision issued on FA24/10/01764; one file of 132 folios identified and released in part with exemptions. (confidence 0.90)

Source: Gmail Home Affairs decision forward.

Forensic significance: The released material apparently confirms ABF acted "on behalf of another agency" but redacts which agency. This is useful for FOI review and political accountability.

10 Apr 2026 - Commission had proposed updated tender bundle service by this date; as at 20 Apr Simon said it had not been received. (confidence 0.91)

Source: Gmail Simon 20 Apr 2026 to AGS.

Forensic significance: If true, this is a simple procedural default. Keep it dry and documentary: promised date passed, bundle absent, disclosure statement absent.

20 Apr 2026 - Simon wrote to AGS/Tribunal noting no updated bundle, no supplementary disclosure statement, and no answer on Simon-specific decision record. (confidence 0.94)

Source: Gmail Simon 20 Apr 2026.

Forensic significance: Excellent letter. It frames the fight correctly: statutory individualised assessment, NDIS Rules, directorship periods, proportionality, and evidence independent of Vida prosecution material.

20 Apr 2026 - Vida lodged OAIC Information Commissioner review seeking only the redacted identity of the agency on whose behalf ABF acted. (confidence 0.93)

Source: Gmail Vida OAIC application.

Forensic significance: Narrow FOI target is smart. The wider the request, the more exemptions breed. The agency identity is the pressure point.

22 Apr 2026 - ART advised severance decision remains under consideration and listed materials being considered, including Vida/SIMON March submissions and respondent September/March submissions. (confidence 0.95)

Source: Gmail ART Registry 22 Apr 2026.

Forensic significance: Current status: waiting for severance decision. This also confirms what materials are before the Deputy President.

22 Apr 2026 - AGS replied to Simon saying it was taking instructions on issues raised in his email. (confidence 0.94)

Source: Gmail Craig Land 22 Apr 2026.

Forensic significance: Translation: they have not yet answered the core production question. Keep pressing politely; do not let "taking instructions" become a nap room.

6. Issue matrix - where the case is strong and weak

Issue	Reids position	Commission likely answer	Forensic view
Simon-specific assessment	No disclosed Simon-specific decision brief; Commission had limited information about his actual involvement; errors about FFG directorship periods; Simon never charged.	Simon was director/key person of linked entities; Hybrid/Goodwin material and Vitality/Dream Big show ongoing suitability risk.	Strongest Simon point. Do not dilute it. Demand documents or a statement none exist. Confidence 0.78.
Vida legal basis change	Original ban was s 73ZN(2)(a)(i); internal review shifted to s 73ZN(2)(a)(iii) and broadened scope. Looks like new decision, not mere variation.	Internal reviewer can make correct/preferable decision and vary. Notice of new material was given.	Good threshold argument, but not guaranteed. Merits review powers are broad. Confidence 0.64.
FFG ban expired	Corporate order no longer in force; live controversy narrowed; public register remains reputational prejudice.	Expired orders remain on register indefinitely; no actionable prejudice; consider withdrawal.	FFG is now tactical baggage unless register/removal/utility is identified. Confidence 0.80.
Criminal case collapsed	Charges dismissed/discontinued; reliance on criminal Statement of Material Facts is unsafe without independent proof.	Administrative standard is balance of probabilities; Commission need not wait for criminal case; evidence can still be used.	Useful but not silver bullet. Use to demand independent proof and proportionality, not automatic victory. Confidence 0.72.
Disclosure/tender defects	Updated bundle overdue; no supplementary disclosure; disclosure requested from 2022; missing decision records matter.	Some material disclosed in notices/bundles; ART can manage disclosure progressively.	Strong procedural management point. Keep asking for narrow, named records. Confidence 0.82.
ABF/FOI strand	ABF acted on behalf of another agency after charges ended; agency identity redacted; suggests continuing government interest/possible overreach.	Collateral to ART merits; customs powers separate; law enforcement methods exempt from FOI.	Politically and procedurally useful, but dangerous as main merits theory until more proof arrives. Confidence 0.60.
Severance	Simon will be prejudiced if tied to Vida/FFG evidence; his issue is individual suitability and lack of direct evidence.	Significant overlap, same events/witnesses, efficiency, possible inconsistent findings.	Good application, especially if Simon can accept common documents but insist separate findings/hearing. Confidence 0.74.

7. Legal position moving forward - short version

Simon: best positioned of the three if the Commission cannot produce a genuine Simon-specific decision record or equivalent analysis. His case should be framed as an individual suitability case, not a family/entity morality play. The core orders should be production of the complete Simon decision record, confirmation whether any Simon-specific brief/minute/submission exists, severance or at least separate findings, and identification of the precise evidence now relied upon independent of the failed Vida prosecution material.

Vida: harder merits terrain because the complaint matrix is large and the Commission will say administrative safeguarding does not need a criminal conviction. The better path is threshold and fairness: the April 2023 shift from contravention to suitability, broadened scope, reliance on new material, inadequate disclosure, failure to properly consider her submissions, proportionality, and participant/family exceptions. Do not argue "there was no evidence" broadly. There was evidence. The fight is reliability, attribution, fairness, statutory basis, and proportionality.

FFG: the corporate ban has expired. AGS will keep pushing utility/withdrawal. FFG should either narrow its live issue to public-register/reputational consequences and any ongoing legal prejudice, or get out of the way so it does not drag Simon and Vida into procedural mud. Dead horses are poor litigation vehicles.

ABF/FOI: keep running the OAIC review, but treat it as a collateral accountability strand unless it produces the referring agency identity or interagency communications. If it proves NDIS/NDIA triggered border action after charges ended, it becomes powerful for disclosure/model-litigant/political pressure. Until then, it is smoke with some heat, not the roast beef.

8. Immediate tactical orders / requests to press

- Order 1: Respondent to serve the updated tender bundle promised for 10 April 2026 within a fixed short period.

- Order 2: Respondent to provide a supplementary disclosure statement identifying any documents added, withheld, redacted, or said not to exist.

- Order 3: Respondent to state whether any Simon-specific decision brief, executive brief, delegate submission, minute, recommendation, internal legal advice summary, or equivalent record exists for the original and internal review decisions.

- Order 4: If any such Simon-specific record exists, produce it subject only to properly particularised privilege claims. If none exists, file a written statement to that effect from an officer with knowledge.

- Order 5: Respondent to identify the matters prescribed by the NDIS Rules relied upon for s 73ZN(2)(a)(iii), and the evidence said to satisfy each matter as against Simon personally.

- Order 6: Respondent to identify what evidence it relies upon now, after the criminal charges against Vida were dismissed/discontinued, to sustain findings originally linked to the Statement of Material Facts.

- Order 7: Sever Simon's hearing or, at minimum, direct separate findings on Simon's personal suitability before any reliance on Vida/FFG evidence by attribution.

- Order 8: For FFG, require the Respondent to identify the live controversy after expiry of the corporate banning order and explain whether public-register consequences are said to be outside the Tribunal's remedial scope.

9. What not to do

- Do not say "there is no evidence" across the whole case. That is false enough to annoy the Tribunal. There is adverse material. The issue is whether it is reliable, disclosed, correctly attributed, and sufficient for these orders.

- Do not let Vida's ABF/FOI fight consume Simon's clean production/severance issue. That would be litigation self-sabotage with extra paperwork.

- Do not argue every procedural grievance at once. Pick the ones that change the result: missing decision records, NDIS Rules, new material, scope, proportionality, severance.

- Do not allow FFG's expired ban to keep Simon trapped in a joined case unless there is a live, identified remedy. If it is dead, bury it; if it still bites through the register, define the bite.

- Do not rely on outrage. Outrage is seasoning. Evidence is dinner.

10. Open gaps to close

- Exact original Simon banning order and proof of service. The scanned zip file appears to contain an original Simon notice, but text extraction was poor. It should be OCR'd or manually reviewed.

- Exact court order/outcome for Vida's criminal charges. The record uses both "want of prosecution" and "no evidence" language. Use the precise court wording only.

- Full respondent supplementary submissions dated 19 March 2026 and respondent 17 September 2025 submission. They must be mapped point-by-point against Simon/Vida replies.

- Full Home Affairs FOI release (132 folios) and redaction schedule. The key is the identity of the agency on whose behalf ABF acted.

- Any Commission internal decision records outside the tender bundle: decision brief, delegate minute, recommendation, legal advice coversheet, risk assessment, approval workflow, PDMS metadata.

- Witness list and whether the Commission intends to call decision-makers/investigators or only rely on documents. Hearsay-heavy bundles are useful until someone asks them to stand upright.

11. Bottom line

The Reids should stop trying to win the whole moral universe and win the procedural battlefield in front of them. Simon's best shot is severance plus production plus a clean challenge to personal suitability. Vida's best shot is threshold legality/procedural fairness/proportionality, not denial of every adverse allegation. FFG is mostly a utility problem after expiry unless the public register causes live prejudice. The Commission's biggest vulnerability is not that it had no concerns; it is that it may have converted concerns about an entity and one spouse into a sprawling, life-altering ban against the other spouse without doing the boring statutory homework. Boring homework wins cases. Sexy outrage loses them with better lighting.